

		challenged Defendant's original 12/31 responses and were filed before the 2/12 and 3/20 responses existed. Plaintiff cannot avoid the statutory deadline by amending the original motions. The motions are denied. Based on the foregoing, Plaintiff did not act with substantial justification in making these motions. Plaintiff created this situation by filing the original motions the day before the date Defendants agreed to serve further responses. There was no need to do so. Plaintiff's deadline to file a motion directed at the 12/31 responses did not expire until 2/19/26. Had Plaintiff waited just one day, there would have been no need to file the original motions. Plaintiff then refused to withdraw the original motions after Defendants served further responses without objections twice. He then failed to serve timely motions directed at the further responses. Even after the court gave Plaintiff another opportunity to resolve the motions informally, Plaintiff still did not withdraw the untimely motions. Defendants' request for sanctions therefore is granted. Plaintiff is ordered to pay monetary sanctions to Defendants in the amount of \$1,800 within 30 days.
13	McCoy v. McCoy 2024-01436961 Motion to for summary judgment/adjudication	Cross-Defendant Danny J. McCoy's motion for summary judgment in his favor and against Cross-Complainant Theresa E. McCoy as to the cross-complaint filed by Theresa E. McCoy is CONTINUED to November 9, 2026. There are several procedural issues with Cross-Complainant's Opposition. First, Cross-Complainant's opposition to the Motion is untimely. (Code Civ. Proc. §437c, subd. (b)(2) ["An opposition to the motion shall be served and filed not less than 20 days preceding the noticed or continued date of hearing, unless the court for good cause orders otherwise."].) Second, Cross-Complainant has failed to submit a Separate Statement in Opposition to the Motion. (Code Civ. Proc. §437c, subd. (b)(3) ["The opposition papers shall include a separate statement that responds to each of the material facts contended by the moving party to be undisputed, indicating if the opposing party agrees or disagrees that those facts are undisputed."]; <i>Parkview Villas Assn., Inc. v. State Farm Fire & Casualty Co.</i> (2005) 133 Cal.App.4th 1197, 1211 ["[W]e do not question the right of a trial court to refuse to proceed with a summary judgment motion in the absence of an adequate separate statement from the opposing party...But the proper

		response in most instances, if the trial court is not prepared to address the merits of the motion in light of the deficient separate statement, is to give the opposing party an opportunity to file a proper separate statement rather than entering judgment against that party based on its procedural error.”].) Based on the Cross-Complainant’s failure to file a timely opposition or file a Separate Statement in Opposition, the Court will continue the hearing to allow Cross-Complainant to file a Separate Statement and give Cross-Defendant an opportunity to file reply papers. Cross-Complainant to file a separate statement no later than 20 days before the continued hearing. Cross-Defendant to file a reply no later than 11 days before the continued hearing. Moving party to give notice.
14	Quick Bridge Funding, LLC v. Axe Tactical LLC 2025-01480360 Motion to Summary Judgment/Adjudication	Plaintiff Quick Bridge Funding, LLC’s Motion for Summary Judgment is GRANTED. Code of Civil Procedure section 437c(c) states, “The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact.” Plaintiff moves for summary adjudication on its 2nd and 3rd causes of action for Breach of Guaranty against Williams and Axe 2.0. There is no triable issue of fact as to the 2nd and 3rd causes of action. The elements of a claim for breach of contract are “(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff.” (<i>D'Arrigo Bros. of California v. United Farmworkers of America</i> (2014) 224 Cal.App.4th 790, 800.) As to the 2nd cause of action, Plaintiff has demonstrated (1) the existence of the guaranty with Williams, (2)